# SAAS SUBSCRIPTION AGREEMENT

This SaaS Subscription Agreement ("Agreement") governs use of the CloudSuite commerce platform ("Service") provided by CloudSuite Inc. ("Supplier") to Northwind Retail Ltd. ("Customer"). By clicking accept or using the Service, Customer agrees to this Agreement.

## 1. SUBSCRIPTION TERM AND RENEWAL

The initial subscription term is twelve (12) months. The subscription automatically renews for successive twelve (12) month terms unless Customer gives written notice of non-renewal no later than ninety (90) days before the end of the then-current term. Notices must be given by registered mail.

## 2. PRICE ESCALATION

Supplier may adjust subscription fees at each renewal by up to fifteen percent (15%) above the prevailing Consumer Price Index, or by such higher amount as Supplier determines in its discretion, effective upon renewal without Customer consent.

## 3. SERVICE LEVELS

Supplier targets 99.0% monthly availability of the Service. Availability below this target does not entitle Customer to any refund, service credit, damages, or termination right, whether at law, in equity or under this Agreement.

## 4. CUSTOMER DATA AND EXIT

Upon termination, Customer may export Customer Data for a period of thirty (30) days. Thereafter Supplier may delete all Customer Data permanently, and a data retrieval fee of USD 5,000 applies to any export requested after the termination date.

## 5. SUSPENSION

Supplier may suspend the Service immediately and without notice if Supplier reasonably believes Customer's use violates this Agreement, without liability for any resulting damages or losses.

## 6. CHANGES TO TERMS

Supplier may modify this Agreement at any time by posting an updated version on its website. Customer's continued use of the Service constitutes acceptance of the updated terms.

## 7. LIMITATION OF LIABILITY

Supplier's total aggregate liability shall not exceed the fees paid in the single month preceding the claim. Supplier shall not be liable for lost profits, lost revenue, or any indirect or consequential damages.

## 8. GOVERNING LAW

This Agreement is governed by the laws of the State of Delaware, without regard to conflict of laws principles.